

Yuba County Flock Oversight – Evidence Brief

****Purpose:**** Companion to `Yuba\_County\_Flock\_Oversight\_Project.docx` (operational checklist). This document answers **why each piece of evidence matters** and maps documents to specific claims. It does not track task status – the checklist does that.

****Last Updated:**** May 8, 2026

****Target Audience:**** BOS public comment (June 2026); DeFlock NorCal coalition; potential media/legal referral

****Argument Structure:**** Two primary pillars → shared conclusion of inadequate oversight architecture

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Pillar 1 – SB 34 / Civil Code §§ 1798.90.5 et seq. Compliance Failures

****Core legal standard:**** SB 34 (Statutes of 2015, Ch. 532) is codified at ****California Civil Code §§ 1798.90.5 et seq.**** – not Vehicle Code § 2413. Vehicle Code § 2413 governs CHP specifically (60-day retention, no data sales, annual Legislative report) and is not the operative statute for county sheriff's offices. The AG's 2023 enforcement bulletin confirms: SB 34, codified at Civil Code § 1798.90.5 et seq., establishes privacy and documentation requirements for California LEAs collecting, storing, using, or sharing ALPR data. ****Use Civil Code citations at BOS – not Vehicle Code § 2413 – or county counsel will use the error to discredit the framing.****

The operative obligations for YCSO are:

- ****Civil Code § 1798.90.51**** – requires ALPR usage and privacy policy to be publicly available in writing and posted conspicuously
- ****Civil Code § 1798.90.52**** – requires written usage and privacy policy governing authorized purposes, data security, access controls, and training
- ****Civil Code § 1798.90.53**** – requires annual report to governing body on ALPR usage
- ****Civil Code § 1798.90.55(b)**** – protects ALPR **detection data** from disclosure (YCSO has misapplied this to deflect administrative governance record requests – a documentable misapplication)

The documentation obligation attaches to the YCSO deputy initiating each search – it cannot be delegated to Flock or satisfied by a vendor-hosted portal. MSA Section 3.2 makes SB 34 compliance an affirmative contractual warranty borne solely by YCSO.

1A. Blank Reason Rate: ~58% of Searches Undocumented

****The claim:**** More than half of YCSO's logged Flock searches from February 2, 2026 onward contain no documented justification in the reason field.

****Key findings:****

- ~53% blank reason rate confirmed from YCSO's own public Transparency Portal CSV export
- This figure is a ****post-December 2025 baseline**** – the Flock portal format change (eliminating officer-level identifiers) occurred in December 2025; Tom's dataset begins February 2, 2026, after the change took effect
- The blank reason rate is an ****independent finding**** from the after-hours concentration (44–45%); they are not compounding findings and must not be presented as such without specific evidence linking them
- YCSO's own portal policy statement reads: *"All system access requires a valid reason and is stored indefinitely"* – this directly contradicts the downloadable data on the same page, where ~53% of reason fields are blank
- The policy statement is YCSO-authored (not Flock-authored), making YCSO the owner of the self-contradiction

****Documents:****

- ****Flock Transparency Portal CSV exports**** (scraped data, `Master Audit.xlsx`, sheet: `search\_audit\_pacific`) – primary quantitative source
- ****YCSO public portal policy statement**** – source of the self-contradicting text; screenshot/archive should be preserved

****Specific claims supported:****

- YCSO's own disclosure standards are internally inconsistent
- A ~58% blank rate constitutes a facially deficient audit trail under § 1798.90.52's documentation requirement
- YCSO cannot satisfy SB 34 by pointing to a Flock-hosted portal when that portal's own data shows half of searches have no documented basis
- ****Two independent legal bases for this finding:**** (1) Civil Code § 1798.90.52 (SB 34 documentation requirement); (2) YCSO's own Policy 433 § 433.6(e), which requires a documented reason for each search – YCSO is violating its own policy, not just state law

****Gaps / what this doesn't prove:****

- Cannot determine whether blank entries represent intentional omission, system failure, or officer negligence – requires Phase 2 internal log CPRA
- Cannot confirm whether internal YCSO logs contain justifications that simply weren't entered into the portal field
- The blank rate is a post-change baseline; pre-December 2025 comparison data would require a separate historical pull

1B. Audit Log Integrity: Backdating and Portal Self-Contradiction

****The claim:**** YCSO's audit log contains retroactively added or backdated entries, undermining its reliability as a compliance record.

****Key findings:****

- Backdated/retroactive log entries detected in the downloaded audit data – entries appearing with timestamps inconsistent with sequential portal chronology
- This is ****structurally significant****: a backdated audit log cannot serve as contemporaneous documentation under § 1798.90.5 et seq.; it proves the log is being modified after the fact rather than recorded at the time of each search
- The Transparency Portal simultaneously asserts full compliance ("stored indefinitely") and produces data that contradicts that claim – two sources from the same agency, on the same page, saying opposite things

****Documents:****

- ****`Master Audit.xlsx` / `search\_audit\_pacific.xlsx`**** – source of backdating analysis; timestamps and entry sequence
- ****YCSO Transparency Portal**** (archived screenshots) – source of the policy statement vs. data discrepancy

****Specific claims supported:****

- The audit log is not a reliable contemporaneous record

- Evidence of backdating directly undermines YCSO's ability to assert § 2413 compliance after the fact
- The portal self-contradiction is independently presentable to BOS without requiring technical data explanation – it's a simple "their website says X; their data shows not-X" argument

****Gaps / what this doesn't prove:****

- Whether backdating was intentional or a system artifact (e.g., delayed sync from Flock's servers) – requires Phase 2 internal log production to resolve
- Backdating alone does not prove misconduct, but it does prove the audit log is not a reliable compliance mechanism

1C. Five-Way Data Retention Conflict

****The claim:**** YCSO's data retention period is simultaneously defined by five different documents with no single controlling standard – and YCSO's own policy does not match any executed contract term.

****The five conflicting standards:****

Source	Retention Period	What it covers	Citation
Flock platform default	MSA § 1.15	30 days rolling	Vendor-side footage purge
2025 BOS-signed Order Form header	Exhibit A	**30 Days** (stated Retention Period field)	Order Form's own stated retention – conflicts with extended add-on purchased on the same document
March 2022 amended contract special term	65 days	Unknown – vendor-side, YCSO-side, or both?	`Agenda_Item_3332022`, Special Terms
YCSO Policy 433 § 433.5	60 days	Flock vendor purge	/ up to 1 year (YCSO server)
2022 MSA Order Form / 2025 BOS Order Form	Up to 1 year	extended add-on	Extended retention purchased for cameras
		2022: \$300 × 25 cameras	2025: \$267.90 × 26 cameras

****Key findings:****

- The 2022 MSA Order Form shows YCSO purchased ****extended data retention**** for all 25 cameras at \$300/camera/year – establishing a one-year contractual entitlement
- The ****2025 BOS-signed Order Form**** (`Flock\_Safety\_signed\_by\_BOS.pdf`, Exhibit A, p.3) ****simultaneously states a 30-day retention period in its header field**** while purchasing an "Extended data retention (Up to 1 Year)" add-on for 26 cameras at \$267.90/camera (\$6,965.40 annually) – a direct internal contradiction within the same executed document, signed by BOS Chair Gary Bradford and certified by County Counsel, Janet Bender on August 26, 2025. This is now the sharpest single-document illustration of the retention framework's incoherence: the county signed a document that says "30 Days" at the top and buys a one-year extension on the same page

- The March 2022 amended contract special term says ****"65 days"**** – a figure that appears nowhere in Policy 433 (which says 60 days for vendor-side) and nowhere in the original MSA; the source and meaning of "65 days" is unresolved
- Policy 433 § 433.5 is a ****two-tier structure****: Flock purges footage at 60 days on the vendor side; YCSO may retain data on its own servers for up to one year – the "60-day" figure commonly cited in research materials describes only the vendor-side purge, not YCSO's total retention authority; this two-tier framing is confirmed identical in both the 2022 policy text and the 2025 policy release (`YCSO\_2026\_Policy\_Release.pdf`) – the conflict is not a drafting artifact but a sustained structural inconsistency
- The research summary's characterization of "Policy 433: 60 days" is therefore an oversimplification – YCSO has authority to retain for up to a year on its own servers; whether it exercises that authority is unknown
- ****Policy 433 § 433.8 – Annual Audit Requirement:**** Policy 433 requires an annual audit memorandum documenting at least 10 sampled searches reviewed per year, submitted to the Sheriff – this internal audit mechanism has never been disclosed and is a direct Phase 2 CPRA target
- Peer agencies (Marysville PD, Wheatland PD) both use ****one-year minimum**** under Government Code § 34090.6 with explicit statutory citation – YCSO has no comparable statutory anchor in its policy

****Specific claims supported:****

- YCSO's retention framework is internally contradictory across at least five documents with no single controlling standard
- The 2025 executed Order Form contains an internal self-contradiction on its face – "30 Days" retention stated, one-year extension purchased – in a document signed by the BOS Chair and approved by County Counsel
- The "65-day" March 2022 special term matches neither the policy (60 days vendor-side) nor the purchased entitlement (1 year) – its origin and meaning should be demanded via CPRA
- YCSO is an outlier below the regional peer standard with no statutory justification
- Policy 433's § 433.8 annual audit requirement has never been disclosed – either the audits are being conducted and withheld, or they are not being conducted at all; both are significant
- BOS framing: "Your own policy requires an annual audit of Flock searches. Has that audit been done? Where is it?" / "Your Chair signed a contract that says '30 Days' on the same page where you paid for a year of storage. Which is it?"

****Gaps / what this doesn't prove:****

- Policy 433 § 433.5 two-tier framing (60-day vendor / 1-year YCSO) confirmed against both the 2022 policy text and the 2025 policy release (`YCSO\_2026\_Policy\_Release.pdf`) – language is identical across both versions; the retention conflict is not a drafting artifact but a sustained structural inconsistency
- Does not establish which retention period is actually being applied in practice – Phase 2 internal deletion logs needed

****Documents:****

- ****`Flock\_Safety\_signed\_by\_BOS.pdf`**** (Aug 26, 2025, signed by Gary Bradford as BOS Chair) – Exhibit A Order Form; Retention Period field states 30 Days; Extended data retention add-on: \$267.90 × 26 cameras = \$6,965.40/year; FlockOS Advanced Package: \$14,250/year; Annual recurring total: \$135,215.40; Contract total (2-year): \$273,850.80; references OMNIA Contract #RS250203; approved as to form by County Counsel
- ****`Agenda\_Item\_2142022\_BOS\_\_Flock.pdf`**** (Feb 14, 2022 BOS agenda) – original MSA Order Form; extended retention line item (\$300 × 25 cameras = \$7,500/year)
- ****`Agenda\_Item\_3332022.pdf`**** (Mar 3, 2022 BOS agenda) – amended contract; retention noted as "65 days" in special terms
- ****`Agenda\_Item\_2632025\_BOS\_\_Flock.pdf`**** (Feb 26, 2025 BOS agenda) – current MSA (renewed); MSA § 1.15 establishes 30-day Flock default
- ****`ALPR\_policy\_102022.pdf`**** – Policy 433 § 433.5 (two-tier retention); § 433.8 (annual audit requirement)
- ****`YCSO\_2026\_Policy\_Release.pdf`**** – confirms Policy 433 § 433.5 retention language unchanged in 2025 version
- ****`Marysville\_PD\_ALPR\_Policy\_24\_May\_2023.pdf`**** / ****`Wheatland\_PD\_ALPR\_Policy\_7\_Jun\_23.pdf`**** – Lexipol Policy 426, § 426.4: one-year minimum citing Gov. Code § 34090.6

1D. Outside-Agency Network Access Without Disclosed Authorization

****The claim:**** YCSO's purchased Flock tier includes statewide and/or nationwide network access, meaning agencies outside Yuba County can query YCSO-collected plate data and vice versa, without any public disclosure of the participating agencies or authorization framework.

****Key findings:****

- YCSO's OMNIA contract (RS250203) FlockOS features table explicitly lists ****Statewide Network**** and ****Nationwide Network**** (License Plate Lookup Only) as purchased features
- The FlockOS description for Nationwide Network reads: agencies "leverage a nationwide system boasting 10 billion additional plate reads per month" – YCSO's own contract confirms this access is active

- ****2025 BOS-signed Order Form**** (`Flock\_Safety\_signed\_by\_BOS.pdf`) confirms ****FlockOS Advanced Package**** as a purchased line item (\$14,250/year), independently corroborating the OMNIA contract analysis – the tier is now confirmed by two executed documents. The same Order Form's ****FlockOS Features & Description table**** (p.5) provides contractually binding, plain-language definitions of all four purchased network access tiers: State Network = "look up license plates on all cameras opted into the Flock Safety network within your state"; Nationwide Network = agencies "no longer have to rely on just their devices alone... 10 billion additional plate reads per month"; Law Enforcement Network Access = "direct access to evidence detection devices from Law Enforcement agencies outside of your jurisdiction"; Community Network Access = "direct access to feeds from privately owned Flock Safety LPR cameras located in neighborhoods, schools, and businesses." These are not Flock marketing materials – they are feature definitions in a BOS-signed contract, approved as to form by County Counsel, Janet Bender
- ****MSA Section 4.2 ("Non-Agency End Users")**** governs outside-agency access; this section has not been produced by YCSO in response to CPRA 26-136 (outstanding)
- ****Flock Network Sharing document**** (`Flock\_NetworkSharing.pdf`, dated 1/29/2026): confirms ****Yuba County Sheriffs Office**** shares with "Sacramento County CA SO, Sacramento County CA SO (Condor), Sacramento County CA SO (WSIN FLEX), Rancho Cordova CA (Sacramento SO)" – multi-entity bilateral sharing is live
- The Woodland, CA reference point: Woodland audit data shows ****99.92% of searches on Woodland's network by outside agencies**** – this figure is ****from Woodland, not Yuba County****; the Yuba-specific equivalent is still awaited via CPRA 26-136 (Request for authorization/access structure)
- NCRIC and WSIN appear in related agency sharing networks; both are federal fusion centers with open-ended downstream access. YCSO's own contract confirms WSIN FLEX network sharing

****Documents:****

- ****`Flock\_Safety\_signed\_by\_BOS.pdf`**** (Aug 26, 2025, signed by Gary Bradford as BOS Chair) – Exhibit A Order Form confirming FlockOS Advanced Package (\$14,250/year); p.5 FlockOS Features & Description table with contractually binding plain-language definitions of all four purchased network access tiers; approved as to form by County Counsel
- ****`PRAR\_Response\_Flock\_OMNIA\_Contract.pdf`**** – OMNIA contract RS250203; FlockOS features table listing Statewide/Nationwide Network access; Flock's certification that no proprietary information is contained (forecloses trade secret CPRA exemption claims)
- ****`Flock\_NetworkSharing.pdf`**** (1/29/2026) – Flock's own data sharing disclosure; lists Yuba County Sheriffs Office sharing with Sacramento County SO and WSIN FLEX
- ****`Agenda\_Item\_2632025\_BOS\_\_Flock.pdf`**** – current MSA; Section 4.4 (Data Distribution) and Section 3.2 (compliance warranty)
- ****CPRA 26-136 (outstanding)**** – authorization/access structure, interagency data sharing agreements

****Specific claims supported:****

- YCSO is participating in multi-agency plate data sharing that was never disclosed to the BOS or the public in any agenda item
- Civil Code § 1798.90.52 requires a written usage and privacy policy that identifies agencies with which ALPR data may be shared – no such public disclosure exists in any YCSO document
- The "local public safety tool" framing offered to the BOS and community is contradicted by the active statewide/nationwide network tier, confirmed in a BOS-signed contract
- YCSO cannot claim the sharing is Flock-initiated: MSA Section 4.4 requires customer authorization for data distribution to third parties; the BOS-signed Order Form defines these features as intentionally purchased capabilities, not incidental platform behavior

****Gaps / what this doesn't prove:****

- The networkCount tier clustering analysis (5 apparent tiers; expanded regional tier = 75.7% blank) is ****inference from data patterns****, not confirmed by a Flock data dictionary – present as open question, not finding; the Flock data dictionary CPRA is still outstanding
- The Woodland 99.92% figure is Woodland-specific and should never be cited as a Yuba County statistic; the Yuba-equivalent requires CPRA 26-136 production
- Does not establish that outside-agency access has caused a specific harm – the compliance gap argument is structural, not outcome-based

1E. Flock's December 2025 Platform Changes Placed YCSO in Automatic Non-Compliance

****The claim:**** When Flock changed its portal format in December 2025 – eliminating officer-level identifiers and replacing free-text reason fields with a drop-down – YCSO became non-compliant with SB 34 as a matter of platform architecture, not individual officer conduct.

****Key findings:****

- EFF's Dave Maass has publicly stated that Flock's December 2025 portal changes placed California agencies in automatic SB 34 non-compliance
- The changes eliminated: (a) officer names from network audit logs; (b) free-text reason fields (replaced by drop-down); (c) individual plate numbers from logs
- Tom's dataset begins February 2, 2026 – entirely post-change – meaning the ~53% blank rate is the ****post-change baseline****, not a pre-change comparison
- YCSO cannot deflect SB 34 obligations to Flock: ****MSA Section 3.2**** states YCSO "represents, covenants, and warrants that Customer shall use Flock Services only in compliance with this Agreement and all applicable laws and regulations, including but not limited to any laws relating to the recording or sharing of data." This is an affirmative warranty – the compliance burden is YCSO's, not Flock's
- Flock's December 2025 T&C changes are on the record; the Cal DOJ v. El Cajon case is relevant precedent context

****Documents:****

- **Agenda_Item_2632025_BOS__Flock.pdf** - current MSA, Section 3.2 (compliance warranty language)
- **EFF / Dave Maass public statements** (external; cite by reference at BOS)
- **Master Audit.xlsx** - post-change data beginning 2/2/2026

Specific claims supported:

- YCSO knew or should have known that the platform changes compromised its § 2413 documentation capability; no corrective action is documented
- YCSO cannot blame Flock for platform-level non-compliance - the MSA places the legal obligation squarely on YCSO
- The BOS approved the February 2025 MSA renewal after these changes were already known in the industry; either YCSO did not disclose the compliance risk, or the BOS approved renewal without evaluating it

Gaps / what this doesn't prove:

- Does not establish that YCSO was aware of the EFF analysis specifically - though awareness is inferable from industry publications
- The pre-December 2025 baseline data (what the reason field looked like under the old format) is not in Tom's dataset; comparison would strengthen the argument but is not required

Pillar 2 - Measure K Governance Conflict

Core legal standard: Government Code § 1090 prohibits a public officer from participating in making a contract in which they have a financial interest. Yuba County Ordinance No. 1575 / Chapter 5.60 (Conflict of Interest Code) establishes the county's own adopted standards. The Measure K Citizens Oversight Committee was created specifically to provide independent review of Measure K fund expenditures - independence is the structural purpose of the committee's existence.

2A. Structural Conflict: Undersheriff Chairs Committee Reviewing His Own Department

The claim: Undersheriff Morawczewski chairs the Measure K Citizens Oversight Committee that reviews expenditures flowing directly to the Yuba County Sheriff's Office - the department he oversees. This is a structural conflict of interest regardless of intent.

Key findings:

- Measure K is a voter-approved public safety sales tax; Flock camera deployment in Plumas Lake is funded through Measure K
- The Citizens Oversight Committee exists to provide independent civilian review of how Measure K funds are spent

- Undersheriff Morawczewski's position as chair means the chief oversight reviewer of Sheriff's Office spending is himself a senior Sheriff's Office official
- The conflict argument is ****structural, not personal****: intent is irrelevant when the structure itself violates the county's adopted conflict of interest standards
- The "advisory only" defense does not resolve the concern: an advisory committee that is chaired by a beneficiary of the funds under review cannot be meaningfully independent, regardless of whether its recommendations are binding

****Documents:****

- ****Measure K enabling documents / BOS resolutions**** (on file via county records)
- ****`Yuba\_County\_Flock\_Oversight\_Project.docx`**** – conflict argument framing and checklist status
- ****Yuba County Ordinance No. 1575 / Chapter 5.60**** – the county's own Conflict of Interest Code

****Specific claims supported:****

- The oversight architecture for Measure K funds is structurally compromised
- The BOS has a fiduciary obligation to ensure that independent oversight of voter-approved tax spending is genuinely independent
- This is a governance problem the BOS can fix through structural reform – it does not require finding wrongdoing
- BOS framing: "Voters approved this tax expecting independent oversight. The current structure does not provide that."

****Gaps / what this doesn't prove:****

- Does not establish that any specific expenditure decision was improper or corrupted
- Does not prove intent or bad faith – and the argument should not be framed that way
- The "advisory only" limitation on the committee may limit § 1090's direct applicability; the stronger ground may be Chapter 5.60 and general conflict of interest principles rather than a strict § 1090 claim

2B. Applicable Legal Standards

****Gov. Code § 1090:**** Public officers may not participate in making a contract in which they have a financial interest. While the committee is advisory, participation in shaping recommendations that affect one's own department's funding is within the spirit if not the letter of § 1090.

****Yuba County Chapter 5.60 / Ordinance No. 1575:**** The county's own adopted Conflict of Interest Code – this is the most direct applicable standard because it is YCSO's own governing document. The argument is that the county is violating its own adopted rules, which is harder to dismiss as external criticism.

****Political Reform Act (Gov. Code § 87100 et seq.):**** Prohibits public officials from making, participating in making, or influencing governmental decisions in which they have a financial interest. The breadth of "influencing" is broader than § 1090's "making" – this may be the stronger statutory hook.

****BOS framing guidance:****

- Lead with the county's own ordinance, not the state statute – "your own rules say this"
- Frame as a liability exposure: if a Measure K expenditure decision is later challenged, the chair's conflict is a vulnerability that exposes the county to legal risk
- The fix is structural and easy: restructure the committee to exclude YCSO personnel from chairing or voting

Supporting Argument – Permitting Gaps (Track B)

****Strategic note:**** The permitting argument is a ****secondary supporting item**** for BOS public comment, not a separate primary track. It reinforces the pattern of incomplete process documentation. The core SB 34 and Measure K arguments remain primary. Track B was listed as an investigative thread in CPRA letters to Public Works, which may function as a useful distraction to YCSO while the core arguments are developed separately.

3A. Encroachment Permit Inventory vs. Known Camera Deployment

****What the produced permits show:****

Permit	Location	Cameras	Agency	Notes
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PW22-0166	1675 N. Beale Rd	25	YCSO	Original 2022 batch
ENCR-22-0036	5962 Avondale Ave	6	YCSO (Flock applicant)	September 2022
ENCR-23-0295	Road 169	–	Yuba County Water Agency	Unrelated to YCSO Flock deployment; set aside
ENCR-24-0314	7638 Jack Slough Rd	1	**Marysville PD**	Issued 11/12/2024; cross-agency
ENCR-26-0043	987 Country Club Rd	1	YCSO	Issued 2/11/2026; Final Approval line **blank**

****Documents:****

- ****`1675\_North\_Beale\_RdPW220166Executed.pdf`**** – 25-camera 2022 batch permit
- ****`5962\_Avondale\_Ave\_ENCR220036\_Executed\_v1.pdf`**** – 6-camera Avondale permit
- ****`Road\_169\_ENCR230295\_Executed.pdf`**** – Water Agency permit (set aside)
- ****`7638\_Jack\_Slough\_Road\_ENCR240314\_Executed.pdf`**** – Marysville PD camera in Yuba County ROW

- ****`987\_Country\_Club\_Road\_ENCR260043\_Executed.pdf`**** – Most recent YCSO permit; unsigned final approval

3B. Starbend Boat Ramp: MOU Without a Permit

****The claim:**** YCSO executed a formal MOU with Public Works specifically for a Starbend Boat Ramp Flock camera, but no encroachment permit for that location was produced in response to the CPRA.

****Key findings:****

- ****`4152025\_Public\_Works\_MOU.pdf`**** – MOU between YCSO and Yuba County Public Works; explicitly covers "One (1) FLOCK Safety Solar Multi-Purpose LPR and Video" at the Starbend Boat Ramp Area; establishes reimbursement structure (Public Works pays YCSO)
- No encroachment permit for Starbend Boat Ramp appears in any produced document
- Flock's OMNIA SOP commits to pre-installation permitting coordination – the OMNIA contract's certified-no-proprietary-information finding means the SOP cannot be withheld as a trade secret
- The discrepancy: YCSO executed an MOU (a formal legal instrument) specifically naming this location, but no corresponding Right-of-Way authorization exists in the public record

****Documents:****

- ****`4152025\_Public\_Works\_MOU.pdf`**** – primary; establishes the MOU and Starbend location
- ****`PRAR\_Response\_Flock\_OMNIA\_Contract.pdf`**** – OMNIA SOP permitting coordination commitment; no-proprietary-information certification

****Specific claims supported:****

- The MOU's existence proves YCSO knew formal authorization was required at this location; the absence of a permit shows that authorization was not obtained through the standard Public Works channel
- Bridges to the OMNIA SOP finding: if Flock's own standard operating procedure requires pre-installation permitting coordination, and no permit exists, either Flock or YCSO failed to follow that SOP

****Gaps / what this doesn't prove:****

- Does not establish whether the camera was installed without authorization or whether authorization was obtained through a different mechanism not produced in the CPRA response
- A no-records response to the CPRA would itself be a significant finding – absence of a permit in the production is strong but not conclusive until the agency certifies no responsive records exist

3C. Cross-Agency Hardware in Yuba County ROW

****The claim:**** ENCR-24-0314 (Jack Slough Rd, 11/12/2024) is a Flock camera installation ****on behalf of Marysville PD**** in Yuba County right-of-way, with no disclosed interagency data-sharing agreement produced from CPRA 26-136.

****Key findings:****

- The permit identifies Marysville PD as the agency, with Flock as installer – this is Marysville PD hardware in Yuba County ROW
- CPRA 26-136 requested all interagency data sharing agreements; none covering the Marysville PD camera were produced
- The Flock Network Sharing document confirms Marysville CA PD is a separate Flock network participant
- This bridges directly into the § 2413(b) outside-agency disclosure gap: if Marysville PD's camera is accessible through YCSO's network (or vice versa), the authorization and disclosure framework is unclear

****Documents:****

- ****`7638\_Jack\_Sough\_Road\_ENCR240314\_Executed.pdf`**** – permit issued on behalf of Marysville PD
- ****`Flock\_NetworkSharing.pdf`**** – confirms Marysville CA PD as a separate Flock network participant
- ****CPRA 26-136 (outstanding)**** – interagency sharing agreements not yet produced

Supporting Evidence – Effectiveness Claim Rebuttal

****Strategic note:**** This section does not aim to prove Flock is ineffective – that cannot be established without Phase 2 CPRA data (hit-to-arrest rates). The goal is to rebut the unsupported effectiveness claims the YCSO and Supervisor Bradford have made to the BOS, and to show that the BOS has been making multi-year funding decisions without independent effectiveness data.

4A. Crime Clearance Rate Analysis

****The claim:**** YCSO's own cited crime clearance rate data does not support a conclusion that Flock deployment improved case-solving outcomes.

****Key findings:****

- 10-crime-type clearance rate analysis compiled from CA DOJ OpenJustice data, 2015-2024 (pre-Flock vs. post-Flock periods)
- Clearance rates in the post-Flock deployment period ****declined or remained flat**** for most analyzed crime types
- ****Critical framing caveat:**** clearance rates are lagging metrics that cannot isolate Flock's contribution from confounders including Ring cameras, Nextdoor networks, Measure K staffing increases, and broader crime trend shifts – this limitation must be acknowledged at BOS to avoid overreach

- The argument is not "Flock caused worse outcomes" but rather "the data does not support the effectiveness claims being made"
- Supervisor Bradford publicly acknowledged on Reddit he had no independent data and was relying on YCSO's characterization – this is on the record

****Documents:****

- ****`Yuba\_Clearance\_Rate\_PQ.xlsx`**** – compiled clearance rate analysis; Power Query workbook; CA DOJ OpenJustice source data

****Specific claims supported:****

- The BOS has been approving Flock expenditures without independent effectiveness verification
- YCSO's own characterizations of Flock's impact are unverified and unverifiable without Phase 2 CPRA data (hit-to-arrest rates)
- The most critical effectiveness metric – hit-to-actionable-outcome rate – has not been disclosed

****Gaps / what this doesn't prove:****

- Cannot prove Flock is ineffective; clearance rates measure case-solving, not crime prevention, and cannot isolate Flock's contribution
- The hit-to-arrest rate (or hit-to-actionable-outcome rate) is the correct metric; this requires Phase 2 CPRA production

4B. Facebook Notification Analysis

****The claim:**** YCSO's own Facebook data (25 months, July 2023–November 2025) shows 14,671 Flock notification posts but establishes no causal link to arrests.

****Key findings:****

- 14,671 total notifications posted by YCSO to Facebook over the analysis period
- YCSO's own footnote definition of "notification" is used against them – the term encompasses alerts, not confirmed outcomes
- No post in the dataset connects a Flock notification to an arrest, conviction, or case closure
- This is Phase 1 analysis; Phase 3 CPRA (notification-to-outcome data) is needed to close the loop

****Documents:****

- YCSO Facebook post dataset (compiled from public posts, 2023–2025)

****Specific claims supported:****

- Volume of notifications alone does not establish effectiveness
- YCSO is publicly representing Flock's activity in ways that imply effectiveness without providing outcome data
- The BOS is being asked to continue funding based on activity metrics rather than outcome metrics

****Gaps / what this doesn't prove:****

- Does not prove that none of the 14,671 notifications led to outcomes – only that no connection was disclosed
- Phase 3 CPRA needed to request notification-to-enforcement outcome data

4C. Peer Policy Comparison

****The claim:**** YCSO's ALPR policy (Policy 433) is structurally weaker than peer agencies on the same template framework, with no statutory basis for the differences.

****Key findings:****

Policy Element	Marysville PD (Policy 426)	Wheatland PD (Policy 426)	YCSO (Policy 433)
Data retention	1-year minimum (Gov. Code § 34090.6)	1-year minimum (Gov. Code § 34090.6)	60 days (no statutory citation)
Statutory anchor	Civil Code § 1798.90.52 explicit	Civil Code § 1798.90.52 explicit	Not explicitly cited
Interagency sharing	Written request + Commander approval + retained on file	Authorized verified LE officials	Not comparably documented
Website posting	Required (§ 1798.90.51)	Required	Compliance status unclear

****Documents:****

- ****`Marysville\_PD\_ALPR\_Policy\_24\_May\_2023.pdf`**** – Lexipol Policy 426, § 426.4 (one-year minimum, Gov. Code § 34090.6 citation)
- ****`Wheatland\_PD\_ALPR\_Policy\_7\_Jun\_23.pdf`**** – Lexipol Policy 426, § 426.4 (one-year minimum, Gov. Code § 34090.6 citation)

****Specific claims supported:****

- YCSO's 60-day retention is below the regional peer standard with no statutory justification
- The comparison uses the same Lexipol policy framework that YCSO presumably uses (Policy 433 vs. Policy 426), making the differences impossible to attribute to template variation
- BOS framing: "Your neighboring agencies – Marysville PD, Wheatland PD – both keep this data for one year because state law says to. Why does YCSO keep it for 60 days?"

****Strategic note:**** Regional peer CPRA requests (Marysville PD and Wheatland PD for audit logs, interagency sharing records, training documentation) are ****on hold until after BOS presentation**** to avoid alerting YCSO to the comparison framing prematurely. This is a Phase 4 action.

Contractual Anchor Documents

5A. 2022 Master Services Agreement (Original)

****Source:**** `Agenda\_Item\_2142022\_BOS\_\_Flock.pdf` (Feb 14, 2022 BOS agenda)

- DocuSign Envelope ID: 71A8C4CE-9675-40E5-ABC1-50E8A6129D79
- 25 Flock Falcon cameras; Year 1 total \$79,750; recurring \$73,500
- ****Extended data retention purchased:**** \$300 × 25 cameras = \$7,500 annually – establishes one-year contractual entitlement
- Signed by YCSO Sheriff; countersigned by Flock Chief Revenue Officer

****Evidentiary role:**** Establishes the original contractual framework; the extended retention line item directly contradicts Policy 433's 60-day period; confirms YCSO's affirmative acceptance of compliance obligations.

5B. 2025 MSA Renewal

****Source:**** `Agenda\_Item\_2632025\_BOS\_\_Flock.pdf` (Feb 26, 2025 BOS agenda)

- Signed by Gary Bradford (Chair, BOS); countersigned by Flock; approved by Tiffany Manuel (Risk Manager) and County Counsel (Janet Bender)
- Converts to Condor PTZ camera; Year 1: \$4,841; recurring: \$4,700; contract total: \$9,541
- Virginia Sheriff's Association First Responders Supplies contract (#25-01-0524) cited as procurement vehicle
- ****MSA Section 3.2**** (p.13 of document): "Customer represents, covenants, and warrants that Customer shall use Flock Services only in compliance with this Agreement and all applicable laws and regulations, including but not limited to any laws relating to the recording or sharing of data, video, photo, or audio content."
- ****MSA Section 1.15****: "Flock deletes all Footage on a rolling thirty (30) day basis, except as otherwise stated on the Order Form" – establishes Flock default; Order Form governs actual retention
- ****MSA Section 4.4**** (Data Distribution): Customer must authorize third-party data distribution; Flock cannot share without customer request – YCSO owns the authorization decision for network sharing

****Evidentiary role:**** This is the operative contract. Section 3.2 is the affirmative compliance warranty that prevents YCSO from deflecting SB 34 obligations to Flock. The BOS Chair's signature means the BOS itself is bound by these terms. Approved post-December 2025 platform changes, meaning the BOS renewed knowing (or should have known) that the platform had changed.

5E. YCSO ALPR Policy 433 (October 20, 2022)

****Source:**** `ALPR\_policy\_102022.pdf` (project file; produced via CPRA Phase 1)

- Policy date: October 20, 2022; effective with YCSO Flock deployment
- ****§ 433.5 – Retention (two-tier):**** Flock vendor purge at 60 days; YCSO may retain on its own servers for up to one year – the commonly cited "60-day" figure describes only the vendor-side purge, not YCSO's full retention authority

- ****§ 433.6(e) – Documentation requirement:**** Each search must have a documented reason – independently mirrors SB 34's Civil Code § 1798.90.52 obligation; YCSO's ~53% blank rate violates its own policy, not just state law
- ****§ 433.8 – Annual audit requirement:**** Requires a memorandum to the Sheriff documenting at least 10 sampled searches reviewed annually for policy compliance – this internal audit has never been publicly disclosed and is a direct Phase 2 CPRA target

****Evidentiary role:**** Policy 433 is a gift – it independently creates obligations YCSO is visibly failing to meet, without requiring any reliance on external law. The blank reason rate violates § 433.6(e). The annual audit has never been disclosed (§ 433.8). And the retention framework in § 433.5 conflicts with three other documents. BOS framing: "YCSO isn't just violating state law – they're violating their own written policy."

5C. OMNIA Contract (RS250203)

****Source:**** `PRAR\_Response\_Flock\_OMNIA\_Contract.pdf`

- Flock's response to OMNIA Partners public procurement solicitation
- ****Key finding 1:**** Flock certified no proprietary information – forecloses any trade secret CPRA exemption claims on contract documents
- ****Key finding 2:**** Flock's own SOP commits to pre-installation permitting coordination – strengthens Track B (Starbend no-permit argument)
- ****Key finding 3:**** FlockOS features table (visible in document) explicitly lists Statewide Network and Nationwide Network as active features – confirms YCSO's purchased network scope is beyond local-only
- ****Key finding 4:**** Accountability flows toward the customer (YCSO), not Flock – MSA Section 3.2 warranty confirmed

****Evidentiary role:**** The OMNIA contract was independently obtained from the BOS's own public agenda portal after YCSO withheld it in CPRA response – the contrast between YCSO's withholding and the document's availability on the BOS's own portal is a documentable contradiction presentable to the BOS.

5D. JAG Grant Award (FY24)

****Source:**** `7432024\_Grant\_Award\_Package.pdf`, `7432024\_BAR.pdf`,
`7432024\_Certifications\_and\_Assurances.pdf`

- Award: FY 2024 Edward Byrne Memorial Justice Assistance Grant (JAG) Program
- Award Number: 15PBJA-24-GG-04727-JAGX; Federal Award Date: 12/4/24; Amount: \$14,458
- Recipient: County of Yuba (720 Yuba St, Marysville, CA 95901)
- Project: "Yuba County Flock" – explicitly identified in grant documentation
- ****JAG Conditions 40, 45, 46, 48**** – civil rights, data privacy, and nondiscrimination conditions attached to the grant
- Budget Adjustment Request (`7432024\_BAR.pdf`): \$14,485 revenue/expenditure adjustment processed through Sheriff-Coroner; Fund 108, Dept 2700

****Evidentiary role:**** Federal funding creates federal oversight obligations. JAG Conditions 40, 45, 46, 48 impose civil rights and data privacy compliance requirements on top of state law. If YCSO's SB 34 documentation failures constitute civil rights violations, the federal grant creates a separate accountability vector. Phase 2 CPRA should request JAG compliance documentation. The grant also shows this is not purely a local discretionary expenditure – federal funds are involved.

****CPRA status:**** JAG compliance records (Conditions 40, 45, 46, 48) are queued for Phase 2 CPRA; not yet requested.

CPRA Status – Outstanding Records

Track A – YCSO (Requests 26–97 and 26–136)

****Contact:**** Janet Bender (YCSO records); CC'd Catherine, Erika, Kelly (sign of internal escalation)

****Status as of May 6, 2026:**** Constructive denial letters sent; May 8 response window; acknowledgment received from Bender (committed to "responding," not to producing by a specific date)

****Constructive denial basis:**** Gov. Code § 7923.100; prior extension notice had a blank date (preserved as evidence of compliance failure)

****Outstanding record categories from 26–136:****

- Authorization/access structure for Flock system
- Audit reports and compliance summaries
- Interagency data sharing agreements
- Internal audit logs (Phase 2)
- Unredacted search records (Phase 2)
- User access logs (Phase 2)
- SB 34 compliance documentation (Phase 2)
- JAG grant compliance records – Conditions 40, 45, 46, 48 (Phase 2)

****Next trigger:**** If no substantive response (proper determination letter or valid extension with an actual date) by May 8–9 → escalate to AG complaint or demand letter. A substantive response means a proper determination letter (granting, denying, or partially denying with exemption claims) – Bender's acknowledgment that she will "respond" does not satisfy this; only a determination letter or valid extension notice does.

****Coalition resource produced:**** A fully annotated constructive denial letter template covering all seven sections (header, opening, timeline, legal standard, demand and final window, AG petition notice, closing) plus statutory quick-reference appendix was produced and shared with DeFlock NorCal (April 30, 2026). This template is available for coalition members to adapt across agencies. Key statutes embedded: Gov. Code §§ 7922.525, 7922.530, 7922.535, 7923.000, 7923.100, 7923.115.

Track B – Public Works (Encroachment Permits)
Contact: Samuel Bunton (Public Works Director)
Status as of May 6, 2026: Records received May 5, 2026; analysis complete
Key outcome: Permit inventory complete; Starbend gap confirmed;
ENCR-26-0043 unsigned; Marysville PD cross-agency camera documented

Resolved: Track B constructive denial position was established under § 7923.100; records were subsequently produced, resolving the immediate CPRA dispute. The findings from the produced records are now incorporated as evidence (see Section 3 above).

Phase 2 CPRA (Queued – Post-Track A Resolution)
Do not file until Track A is fully resolved. Targets:
– Internal ALPR search logs (unredacted)
– User access logs with officer identifiers
– SB 34 internal compliance reviews
– **Policy 433 § 433.8 annual audit memoranda** – at least 10 sampled searches reviewed per year, documented to the Sheriff; never disclosed
– JAG condition compliance certifications
– Supervisor/shift logs for overnight searches (10 PM–6 AM)
– Records of access granted to outside agencies

Phase 3 CPRA (Queued)
– Notification-to-enforcement outcome data
– Connecting Facebook notification figures to actual case outcomes (arrest, prosecution, conviction)

Phase 4 – Regional Peer CPRAs (Post-BOS Hold)
– Marysville PD: audit logs, interagency sharing records, training documentation, website compliance
– Wheatland PD: same categories
– **Hold until after BOS presentation** – do not file before June 2026 to preserve comparison framing asymmetry

Governance Gap – Shared Conclusion

Both primary argument pillars converge on the same structural finding:
****YCSO's Flock deployment operates without adequate oversight architecture at every level.****

Layer Governance Gap
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Officer level ~53% of searches undocumented; no supervisory review mechanism for overnight searches

****Agency level****	Policy 433 § 433.5 two-tier retention has no statutory anchor; four-way conflict across documents unresolved; § 433.8 annual audit requirement never disclosed – either not being conducted or being withheld
****Contract level****	MSA Section 3.2 places full compliance responsibility on YCSO; YCSO cannot deflect to Flock
****Network level****	Statewide/nationwide access active; outside-agency sharing undisclosed; CPRA for authorization structure outstanding
****Funding level****	Measure K committee chair is a YCSO official; independent oversight is structurally compromised
****Federal level****	JAG grant conditions impose additional obligations; compliance documentation not yet produced

****The BOS ask (June 2026 target):****

1. Commission an independent SB 34 compliance audit of YCSO's Flock usage – not conducted by YCSO
2. Restructure the Measure K Citizens Oversight Committee to exclude YCSO personnel from the chair position
3. Require YCSO to produce a written interagency data sharing disclosure identifying all agencies with access to Yuba County plate data
4. Require YCSO to reconcile and publicly disclose a single, authoritative data retention standard consistent with peer agencies and Government Code § 34090.6

****BOS framing principle:**** Lead with liability and fiduciary duty, not civil liberties. "You could be sued" lands harder than "this is a civil rights issue" in a rural county board context. The governance gap creates legal exposure for the county – that is the argument that creates urgency for supervisors.

This document is a living evidence brief. Update when new CPRA production is received, when BOS date is confirmed, or when new evidentiary findings are established. Do not merge with the operational checklist in `Yuba\_County\_Flock\_Oversight\_Project.docx`.